
Decision of the National Commission sitting in restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of [...]

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Decision of the National Commission sitting in restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of [...] Deliberation no. 2FR/2024 of May 21, 2024

The National Commission for Data Protection sitting in restricted formation, composed of Ms. Tine A. Larsen, Chair, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection, in particular Article 41;

Having regard to the internal regulations of the National Commission for Data Protection adopted by decision no. 07AD/2024 dated February 23, 2024, in particular Article 10.2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 08AD/2024 dated February 23, 2024, in particular Article 9;

Considering the following:

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I. Facts and Procedure

1.

On March 10, 2020, the National Commission for Data Protection (hereinafter: the “CNPD” or the “National Commission”) received a complaint from Ms. X (hereinafter: the “complainant” or “the data subject”) regarding a surveillance measure via a video surveillance system, which allegedly led to her immediate dismissal. In this context, the complainant reported to the CNPD potential violations of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the “GDPR”).

2.

In the course of the investigation of the complaint, the Municipal Administration of [...] specified that a video surveillance system had been installed outside all municipal buildings in 2013 “in order to ensure a certain level of security for both employees and users of the facilities”¹. Upon request², the Municipal Administration of [...] confirmed that it had reviewed the video surveillance footage “in order to accurately qualify the serious faults”³.

3.

During its deliberation session on July 7, 2023, the National Commission sitting in plenary decided to open an investigation with the Municipal Administration of [...], located at [...], L-[...] (hereinafter: the “controlled entity”), based on Article 38 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection (hereinafter: the “law of August 1, 2018”) and to appoint Mr. Alain Herrmann as the head of the investigation.

4.

The aforementioned decision specified that the investigation conducted by the National Commission aimed to verify, in the context of complaint no. [...], the application and compliance by the Municipal

Administration of [...] with the provisions of the GDPR, the law of August 1, 2018, and legal texts providing specific provisions regarding the protection of personal data, and more particularly those relating to the purpose of the contested processing (video surveillance)⁴.

1 See Document no. 4 of the statement of objections; Letter from the controlled entity dated March 22, 2021.

2 See Document no. 5 of the statement of objections.

3 See Document no. 6 of the statement of objections; Letter from the controlled entity dated February 20, 2023, penultimate paragraph.

4 See Deliberation no. [...] of July 7, 2023.

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5.

The subject of the investigation was informed of the opening of the inquiry against him by letter from the head of the investigation dated August 8, 2023. This moment is referenced later in this decision as the "start of the investigation."

6.

The aforementioned letter was accompanied by a document titled "Initial Findings" outlining the initial findings made by the agents of the CNPD based on the documents collected in the context of the complaint and submitted to the present investigation (hereinafter: the "initial findings"). The head of the investigation offered the subject the opportunity to "contest the facts included in the initial findings, or to provide [his] possible comments, clarifications, or additions" by September 15, 2023, at the latest. The subject did not respond to the aforementioned letter.

7.

At the end of his investigation, the head of the investigation notified the subject on January 10, 2024, of a statement of objections (hereinafter: the "statement of objections") raising the breach he believed to be constituted in this case concerning the requirements prescribed by Article 5.1.b) of the GDPR (principle of purpose limitation related to the processing of personal data) regarding the data subject.

8.

The head of the investigation proposed to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") to adopt four different corrective measures.

9.

The opportunity to submit written observations on the statement of objections was offered to the subject. The latter did not provide any observations to the head of the investigation.

10.

On February 22, 2024, the head of the investigation transmitted the file to the Restricted Formation for a decision regarding the outcome of the investigation.

11.

The president of the Restricted Formation informed the subject by letter dated February 27, 2024, that his case would be included in the agenda of the Restricted Formation meeting on April 18, 2024, and that he was free to be heard.

12.

The subject did not respond to this invitation and did not attend the meeting of the Restricted Formation.

5 Letter from the head of the investigation to the subject dated August 8, 2023.

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During this meeting, the head of the investigation presented his oral observations in support of his written observations and answered questions posed by the Restricted Formation.

14.

The decision of the Restricted Formation on the outcome of the investigation will be based on:

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the processing carried out by the subject in the context of the aforementioned complaint and verified by the agents of the CNPD; and

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the legal and regulatory provisions taken into account by the head of the investigation in his statement of objections.

II. In law

II.1. On the grounds for the decision

A. On the breach related to the principle of purpose limitation

1. On the principles

15.

Article 5.1.b) of the GDPR states that personal data must be "collected for specified, explicit, and legitimate purposes, and not further processed in a manner that is incompatible with those purposes; [...] (purpose limitation); [...]".

16.

In the context of video surveillance, the European Data Protection Board (hereinafter: the "EDPB") has specified that before using a video device "the purposes of the processing must be specified in detail [Article 5, paragraph 1, point b)]. Video surveillance can have many objectives, such as the protection of property and other assets, [...]. These surveillance objectives must be documented in writing (Article 5, paragraph 2) and specified for each surveillance camera used."

17.

More generally, the EDPB has clarified in its guidelines 4/2019 relating to Article 25 (Data protection by design and by default) that "in the case of further processing, the data controller must first ensure that the purposes of this further processing are compatible with the purposes

6 Guidelines 3/2019 on the processing of personal data through video devices, version 2.0 adopted on January 29, 2020, point 15.

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originals and design this accordingly. The compatibility or otherwise of a new purpose must be assessed in light of the criteria set out in Article 6, paragraph 4.

18.

Article 6.4 of the GDPR states that "when processing for a purpose other than that for which the data was collected is not based on the consent of the data subject or on Union law or the law of a Member State which constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives referred to in Article 23, paragraph 1, the controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data was initially collected, takes into account, among other things:

a) the possible existence of a link between the purposes for which the personal data was collected and the purposes of the intended further processing;

b) the context in which the personal data was collected, in particular regarding the relationship between the data subjects and the controller;

c) the nature of the personal data, in particular whether the processing concerns special categories of

personal data under Article 9, or whether personal data relating to criminal convictions and offenses are processed under Article 10;

d) the possible consequences of the intended further processing for the data subjects;

e) the existence of appropriate safeguards, which may include encryption or pseudonymization.”

2. In this case

19.

It appears from the initial findings of the CNPD agents

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that in 2013 the controlled entity established a video surveillance system located outside all municipal buildings and that the CNPD

7 Guidelines 4/2019 of the EDPS relating to Article 25 - Data protection by design and data protection by default, version 2.0 adopted on October 20, 2020, point 71.

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had authorized the video surveillance system through authorization no. [...];

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that by letter dated November 4, 2020, the CNPD drew the attention of the controlled entity to the disproportionate nature of monitoring employees at their workplace via a video surveillance mechanism, as well as to the purposes authorized under authorization no. [...];

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that the controlled entity confirmed by letter dated March 22, 2021, that the video surveillance system was established to ensure the safety of both employees and users of the facility;

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that the CNPD requested the controlled entity by letter dated February 21, 2022, to confirm or deny whether the images from the video surveillance system had been used to support the facts regarding the times of arrival and departure of the data subject; and

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that in its letter dated February 20, 2023, the controlled entity confirmed having consulted the video surveillance images in order to qualify the serious faults as accurately as possible, indicating that “regardless of the legislation on data protection, labor law requires that the dismissal letter must specify the serious fault or faults attributed to the employee, in order to avoid the dismissal being declared abusive by the competent court.”

20.

The head of the investigation noted that the initial findings were not subject to observations or contestation from the controlled entity.

21.

He noted in the communication of grievances that the controlled entity indicated (in the context of the examination of complaint no. [...]) that the video surveillance system had “the purpose of ensuring a certain level of security for both the employees of the municipality and the users of the infrastructures, while specifying that the surveillance system has not

8 Initial findings, finding 3.

9 Initial findings, finding 4.

10 Initial findings, finding 5.

11 Initial findings, finding 6.

12 Initial findings, finding 7.

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was established to monitor municipal staff (Document no. 4) »¹³ and it recalled that the controlled party “admits to having used images from the video surveillance to accurately establish the serious faults of the Claimant in order to justify their immediate dismissal (Document no. 6)”¹⁴.

22.

To this end, the head of the investigation considered that “the personal data initially collected and processed within the framework of video surveillance for a specific, explicit, and legitimate purpose, namely the safety of users of municipal infrastructures and municipal employees, were subsequently processed for a different purpose”¹⁵. He opined that “the images from the video surveillance collected by the [controlled party] were processed for the purpose of further processing, namely the justification for the immediate dismissal of the Claimant.”

23.

He also explained that the controlled party could have been authorized to carry out further processing of the video surveillance images for other purposes but only if this further processing was based on the consent of the data subject or if the further processing was compatible with the initial purposes in accordance with Articles 5.1.b) and 6.4 of the GDPR. Since, on the one hand, the controlled party had not obtained prior consent from the data subject, and on the other hand, the further processing was not compatible with the initial purposes, he concluded that the conditions set forth by these aforementioned articles were not met¹⁶.

24.

The head of the investigation therefore considered that the controlled party had used the images from the video surveillance for a purpose incompatible with the purposes for which they could legitimately process them and that the controlled party had thus violated its obligation arising from Article 5.1.b) of the GDPR¹⁷.

25.

The Restricted Formation first notes that the purposes stated in the CNPD authorization no. [...] of [...] issued at the request of the controlled party regarding video surveillance were as follows:

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“to secure access to the buildings of the applicant;

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to ensure the safety of staff, visitors, children, etc.;

13 Point 23 of the statement of grievances.

14 Point 25 of the statement of grievances.

15 Point 26 of the statement of grievances.

16 Points 28 to 30 of the statement of grievances.

17 Points 31 and 32 of the statement of grievances.

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to detect and identify potentially suspicious or dangerous behaviors that could cause accidents or incidents;

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to accurately identify the origin of an incident;

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to protect property (buildings, facilities, etc.);

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to organize and facilitate a rapid evacuation of individuals in the event of an accident;

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to be able to timely alert emergency services, fire services, or law enforcement as well as to facilitate their intervention”¹⁸.

It also specifies that at that time, the CNPD issued the aforementioned authorization on the condition that “the cameras must not be used to observe the performance and behavior of the staff members of the applicant outside the purposes on which this authorization is based”¹⁹.

26.

It recalls that employees generally have the right not to be subjected to continuous and permanent surveillance in the workplace. To respect the principle of proportionality, the data controller must use the means of surveillance that are most protective of the private sphere of its employees if it decides to install a video surveillance system in the workplace²⁰.

27.

Next, it notes that the controlled party confirmed in its letter of March 22, 2021, that “the cameras were installed to ensure a certain level of security for both employees and users of the infrastructures. [...] Under no circumstances was this surveillance system implemented solely for the purpose of wanting to control municipal staff”²¹. Nevertheless, the controlled party confirmed in its letter of February 20, 2023, that it had reviewed the video surveillance images “to qualify the serious faults as accurately as possible,” indicating that “regardless of the legislation regarding data protection, labor law requires that the dismissal letter must specify the serious faults attributed to the employee in order to avoid the dismissal being declared abusive by the competent court”²² (cf. initial findings, finding 7, as stated

18 Cf. CNPD Authorization no. [...] of [...], page 1, point 2.

19 Cf. CNPD Authorization no. [...] of [...], page 8, second bullet.

20 Cf. CNPD Guidance on surveillance:

<https://cnpd.public.lu/fr/dossiers-thematiques/surveillance/videosurveillance.html>

21 Cf. Document no. 4 of the statement of grievances.

22 Cf. Document no. 6 of the statement of grievances.

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already at point 19 above). In this same correspondence, the controller also noted that the data subject had not appealed against this dismissal.

28.

It shares the investigator's opinion regarding the analysis of Article 5.1.b) together with Article 6.4 of the GDPR and notes that the controller, on the one hand, did not have the consent of the data subject, and on the other hand, the subsequent processing was not compatible with the purposes for which the surveillance images had initially been collected. It therefore concludes that the controller used the images resulting from the surveillance for a purpose incompatible with the purposes for which it could legitimately process them. Furthermore, it considers that the controller could have proven an alleged serious fault of its employee by using means that better protect the privacy of the latter.

29.

In light of the above, the Restricted Formation aligns itself with the opinion of the investigator and concludes that the controller has failed in its obligation arising from Article 5.1.b) of the GDPR.

II.2. On the administrative fine and corrective measures

1. On the principles

30.

In accordance with Article 12 of the law of August 1, 2018, the National Commission has the powers provided for in Article 58.2 of the GDPR:

- “a) warn a controller or a processor that the intended processing operations are likely to violate the provisions of this regulation;
- b) reprimand a controller or a processor when the processing operations have resulted in a violation of the provisions of this regulation;
- c) order the controller or the processor to comply with requests made by the data subject in order to exercise their rights under this regulation;
- d) order the controller or the processor to bring the processing operations into compliance with the provisions of this regulation, where appropriate, specifically and within a determined timeframe;
- e) order the controller to communicate to the data subject a personal data breach;

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- f) impose a temporary or definitive limitation, including a prohibition, on processing;
- g) order the rectification or erasure of personal data or the restriction of processing in accordance with Articles 16, 17, and 18 and the notification of these measures to the recipients to whom the personal data have been disclosed in accordance with Article 17, paragraph 2, and Article 19;
- h) withdraw a certification or order the certification body to withdraw a certification issued under Articles 42 and 43, or order the certification body not to issue a certification if the applicable requirements for certification are not or are no longer met;
- i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the specific characteristics of each case;
- j) order the suspension of data flows addressed to a recipient located in a third country or to an international organization.”

31.

In accordance with Article 48 of the law of August 1, 2018, the CNPD may impose administrative fines as provided for in Article 83 of the GDPR, except against the State or municipalities.

32.

The Restricted Formation wishes to clarify that the facts taken into account in the context of this decision are those established at the beginning of the investigation. Any subsequent changes regarding the data processing subject to the investigation, even if they allow for full or partial compliance to be established, do not retroactively cancel a confirmed violation²³.

33.

Nevertheless, the steps taken by the controller to comply with the GDPR during the course of the investigation procedure or to remedy the violations identified by the investigator in the communication of grievances are taken into account by the Restricted Formation in the context of any corrective measures to be imposed.

23 Cf. Administrative Tribunal, May 14, 2024, no. 46401 of the roll, page 27, paragraphs 1 and 2.

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2. In this case

2.1. Regarding the adoption of corrective measures

34. In the statement of objections, the head of the investigation proposed to the Restricted Formation to adopt the following corrective measures "within a period of 3 months from the notification to the Controlled of the decision made by the Restricted Formation:

- a. to acknowledge the breach of Article 5, paragraph 1, b) of the GDPR;
- b. to issue a reprimand against the Controlled for violating Article 5, paragraph 1, b) of the GDPR;
- c. to issue an injunction against the Controlled to bring the processing into compliance with the obligations arising from Article 5, paragraph 1, b) of the GDPR, notably by taking additional technical and/or organizational measures to limit any risk of diversion of the purposes of personal data in the future and to provide any supporting evidence of compliance with this injunction; and
- d. to publish the decision to be made on the CNPD website."

35. Regarding the corrective measures proposed by the head of the investigation and by reference to point 33 of this decision, the Restricted Formation takes into account that the Controlled has neither responded to the initial findings nor to the statement of objections and that the Controlled has admitted to having used the images from the video surveillance for a purpose other than those initially indicated in its letter of March 22, 2021. It also notes that the Controlled justified the use of the images in the context of the investigation of complaint no. [...] with "labor law [which] requires that the dismissal letter must specify the serious faults attributed to the employee, in order to avoid that the dismissal in question be declared abusive by the competent court."

36. Regarding the qualification proposed by the head of the investigation mentioned under a) of point 34 of this decision, the Restricted Formation considers that, in light of the preceding developments, the violation of Article 5.1.b) of the GDPR is established and that there is

24 Statement of objections, point 37.

25 Document no. 4 of the statement of objections.

26 Letter from the Controlled dated February 20, 2023; Document no. 6 of the statement of objections.

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therefore grounds to acknowledge the breach as proposed by the head of the investigation in this regard and reiterated in point 34 of this decision under a).

37. Regarding the corrective measure proposed by the head of the investigation mentioned under b) of point 34 of this decision, the Restricted Formation considers that since the processing operation in question has resulted in a violation of the GDPR, it is appropriate to impose the corrective measure proposed by the head of the investigation in this regard and reiterated in point 34 of this decision under b).

38. Regarding the corrective measure proposed by the head of the investigation mentioned under c) of point 34 of this decision, the Restricted Formation considers that given that this was an isolated case that dates back in time, there is no need to impose the corrective measure proposed by the head of the investigation in this regard and reiterated in point 34 of this decision under c).

39. Regarding the corrective measure proposed by the head of the investigation mentioned under d) of point 34 of this decision, the Restricted Formation considers that there is no need to impose the corrective measure proposed by the head of the investigation in this regard and reiterated in point 34 of this decision under d).

In light of the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

- to acknowledge a breach of Article 5.1.b) of the GDPR; and
- to issue a reprimand against the Municipal Administration of [...] for violating Article 5.1.b) of the GDPR.

Belvaux, May 21, 2024.

The National Commission for Data Protection sitting in a restricted formation

Tine A. Larsen Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

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Indication of remedies

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.